HEADNOTE

*"1. Parties must be aware that unsolicited communications and/or the unsolicited uploading of documents during proceedings for which the RoP lay down a procedure to be followed (including provisions governing the exchange thereof), does not oblige the Court to take such communications or documents into account, to respond to them, or to consider them in any deliberations.*

*2. In the context of an application pursuant to Rule 262A RoP , a "default" confidentiality order may be issued imposing a confidentiality regime (or, ideally, agreed between the parties) which remains in force throughout the proceedings and which will also apply specifically to the filing of future confidential documents. An example of such a regime/conditions might be:*

*(a) A party submitting new information that is to be regarded as confidential shall, upon submitting its submissions/comments, declare (at the beginning/opening thereof) that it contains confidential information falling within the scope of the default confidentiality order, and shall specify which paragraphs in the submissions/comments and/or documents contain such information.*

*(b) A party submitting new confidential information must also submit a redacted version of the submissions/comments and/or the documents.*

*(c) The other party is entitled to object to the confidential nature of the information designated as confidential within one week of receiving this submissions/comments and/or documents, following which an order will be issued (after the right of defence has been observed). The Court may at any time defer its decision on this matter until the final assessment.*

*(d) If the Court receives no objection pursuant to (c), the new information designated as confidential shall be subject to the default confidentiality order, unless the Court informs the party that submitted the new information marked as confidential (at the latest in the final decision) that the information is not considered confidential (subject to compliance with the rights of defence).*

*(e) The respective confidentiality circles shall apply as set forth in the default*

> *confidentiality*
> *order unless a party expressly requests the Court, pursuant to Rule 262A RoP, that a different, modified confidentiality circle or madality be established with respect to specifically identified confidential information."*

COURT
Local Division in Brussels

PROCEEDINGS
Confidentiality order

PATENT
**EP 3 841 735**

METHOD AND SYSTEM FOR IMPROVING THE PRINT QUALITY

KEYWORDS
R. 262A RoP , R. 262.2 RoP
Confidentiality ring

**Rule 262A** Protection of Confidential Information

SUMMARY
The Local Division in Brussels ruled on a confidentiality order. The patent at issue relates to a method and system for improving the print quality. According to the headnotes of the decision, parties cannot assume the Court will consider unsolicited communications or documents during proceedings. This applies even when such materials are uploaded without invitation. The Court has no obligation to acknowledge, respond to, or weigh these submissions. Further, a default confidentiality order may be issued under Rule 262A of the Rules of Procedure. This order imposes a confidentiality regime that applies throughout the entire case and governs future confidential filings. In particular, a party submitting new confidential information must declare this at the outset of its submissions and specify which paragraphs contain such material. At the same time, that party must also file a redacted version accessible to the public or non-confidential recipients. The opposing party then has one week to object to the confidential designation after receiving the submissions. The Court may defer any decision on the objection until the final judgment. If no objection is raised, the designated information automatically falls within the default confidentiality order. However, the Court may later conclude in its final decision that the information is not confidential, provided the right to be heard is respected. Additionally, the confidentiality circles established in the default order will apply unless a party expressly requests the Court to modify them for specific identified information.